

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4032

By: Caldwell (Trey) and Kane of
the House

and

Hall and Haste of the
Senate

11 COMMITTEE SUBSTITUTE

12 An Act relating to mining; amending 45 O.S. 2021,
13 Section 931, which relates to operator's fees;
14 modifying certain fee; providing an effective date;
15 and declaring an emergency.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 45 O.S. 2021, Section 931, is
18 amended to read as follows:

19 Section 931. A. All operators of coal mining operations shall
20 pay to the Department of Mines a fee of seven and one-half cents
21 (\$0.075) per ton of coal produced.

22 B. All operators of noncoal mining operations shall pay to the
23 Department of Mines a fee of ~~one and one-fourth cents (\$0.0125)~~ one
24 and one-half cents (\$0.0150) per ton of mineral produced. For the

1 purposes of this section, "mineral" shall be defined as provided in
2 paragraph 4 of Section 723 of this title.

3 C. The fees imposed by this section shall be paid no later than
4 thirty (30) days after the end of each calendar quarter beginning
5 the first calendar quarter after June 30, 1982.

6 D. The Department shall develop and promulgate a report form,
7 which shall be as similar as possible to the form required of
8 operators by federal law, and which shall state the amount of coal
9 or mineral produced during the calendar quarter, the method of coal
10 or mineral removal, and the type of coal or mineral. The operator
11 shall swear to the accuracy of the report before a notary public,
12 who shall duly notarize the report.

13 E. All fees collected by the Department of Mines pursuant to
14 this section shall be deposited with the State Treasurer, who shall
15 credit one cent (\$0.01) per ton of fees collected on coal produced
16 on or after July 1, 1988, and one-tenth of one cent (\$0.001) per ton
17 of fees collected on minerals produced on or after July 1, 1988, to
18 the Oklahoma Miner Training Institute Revolving Fund, with the
19 balance of the fees collected to be deposited in the Department of
20 Mines Revolving Fund.

21 F. Notwithstanding the provisions of subsections A and B of
22 this section, each operator subject to the fees imposed by this
23 section shall pay a minimum annual fee of Five Dollars (\$5.00). If
24 the total amount of fees calculated pursuant to subsections A and B

1 of this section for a calendar year is less than Five Dollars
2 (\$5.00), the operator shall remit an amount sufficient to meet the
3 minimum annual fee requirement.

4 SECTION 2. This act shall become effective July 1, 2026.

5 SECTION 3. It being immediately necessary for the preservation
6 of the public peace, health or safety, an emergency is hereby
7 declared to exist, by reason whereof this act shall take effect and
8 be in full force from and after its passage and approval.

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10 COMMITTEE REPORT BY: COMMITTEE ON JOINT COMMITTEE ON APPROPRIATIONS
11 AND BUDGET, dated 04/13/2026 - DO PASS, As Amended.
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